

The U.P. Co-operative Department Group III Subordinate Service Rules, 1977

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State of Uttar Pradesh - Act

The U.P. Co-operative Department Group III Subordinate Service Rules, 1977

UTTAR PRADESH

India

The U.P. Co-operative Department Group III Subordinate Service Rules, 1977

Rule THE-U-P-CO-OPERATIVE-DEPARTMENT-GROUP-III-SUBORDINATE-SERVICE-RULES-1977 of 1977

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The U.P. Co-operative Department Group III Subordinate Service Rules, 1977

Published vide Notification No. 6534/XII-C-2-160-77, dated 16-11-1977. U.P. Gazette, part 1-A, dated March 18, 1978

Notification No. 6534/XII-C-2-160-77, dated 16-11-1977. - In exercise of the powers conferred by the Proviso to Article 309 of the Constitution and in supersession of all existing rules and orders on the subject, the Governor is pleased to make the above rules regulating recruitment and Conditions of Service of persons appointed to the Uttar Pradesh Co-operative Department Group III Subordinate Services.

Part I ? General

1.

Short title and commencement.

(1)

These rules may be called "The Uttar Pradesh Co-operative Department Group III Subordinate Service Rules, 1977.

(2)

They shall come into force at once.

2.

Status of the Service.

- The Uttar Pradesh Co-operative Department Group III Service is a subordinate non-gazetted service comprising Group 'C' posts.

3.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context-

(a)

"Appointing authority" means the Additional Registrar (Administration);

(b)

"Additional Registrar (Administration) " means an officer appointed by the Government as Additional Registrar, Co-operative Societies, Uttar Pradesh, at the Head Office of the Registrar Co-operative Societies, Uttar Pradesh who is authorised by the Registrar, to deal with the establishment matters relating to the Service;

(c)

"Citizen of India" means a person who is or is deemed to be a citizen of India under Part II of the Constitution;

(d)

"Constitution" means the Constitution of India;

(e)

"Department" means the Co-operative Department of the Uttar Pradesh Government;

(f)

"Deputy Registrar" means Deputy Registrar, Co-operative Societies, Uttar Pradesh.

(g)

"Direct recruitment" means recruitment in the manner prescribed in rule 16 of these rules;

(h)

"Government" means the State Government of Uttar Pradesh;

(i)

"Governor" means the Governor of Uttar Pradesh;

(j)

"Group III-A" means and includes the post of Assistant Co-operative Inspectors, Grading Assistants, Statistical Assistants, Village Level Workers (Farming) and also such other posts as carry the scale of pay of Rs. 230-385;

(k)

"Group III-B" means and includes the posts of Government Supervisors Co-operative Farming Supervisors-cum-Accountants, Grading Supervisors and Laboratory Assistant and also such other posts as carry the scale of pay of Rs. 200-320;

(l)

"Member of the service" means a person appointed in a substantive capacity under these rules or under the provisions of the rules or orders in force prior to the commencement of these rules to a post in the cadre of the service;

(m)

"Registrar" means the registrar Co-operative Societies, Uttar Pradesh as defined under section 3(1) of the Uttar Pradesh Co-operative Societies Act, 1965.

(n)

"Regional Officer" means Deputy Registrar, Co-operative Societies posted in a Revenue Division;

(o)

"Staff" means the Group III staff of the Department;

(p)

"Service" means the Uttar Pradesh Co-operative Department Group in Subordinate Service.

Part II ? Cadre

4.

Cadre of Service.

(1)

The strength of the Service and of each category of posts therein shall be such as may be determined by the Governor from time to time.

(2)

The strength of the service and of each category of posts therein shall until orders varying the same are passed under sub- rule (1), be as given in Appendix 'A':

Provided that -

(1)

the appointing authority may leave unfilled or the Governor may hold in abeyance any vacant post,

(2)

the Governor may create such additional permanent or temporary posts as he may consider proper.

Part III ? Recruitment

5.

Source of the recruitment.

- Subject to the provisions of these rules, recruitment to the posts in the cadre of the service shall be made in the following manner:

Inspector Group III-A

(a)

By direct recruitment

(b)

By promotion from amongst persons holding Group III - B posts who have put in at Least 5 years service as such.

Note - For the purpose of promotion a combined gradation list of Group III-B Inspectors shall be prepared in the following manner:

(i)

the name of persons holding permanent Group III-B posts shall be arranged according to the date of their substantive appointment, and

(ii)

the names of persons holding temporary Group III-B posts shall be arranged according to the date of their appointment and shall be placed below the names of persons holding permanent Group III-B posts by direct recruitment.

Inspector Group III-B

By direct recruitment

6.

Proportion of recruitment to Group III-A from Group III-B.

- Recruitment to vacancies in Group III-A shall ordinarily be so arranged that out of total members in the cadre, at any time 50 per cent posts are held by direct recruits and 50 per cent by promotees.

7.

Reservation.

- Reservation for the candidates belonging to Scheduled Castes, Scheduled Tribes and other categories shall be in accordance with the orders of the Government in force at the time of recruitment.

Note - Copies of the Government Orders in force at the time of commencement of these rules are given in Appendix 'B'.

Part IV ? Qualifications

8.

Nationality.

- A candidate for direct recruitment to a post in the service must be-

(a)

a citizen of India, or

(b)

a Tibetan refugee who came over to India before January 1, 1962 with the intention of permanently settling in India, or

(c)

a person of Indian origin who has migrated from Pakistan, Burma, Ceylon (Sri Lanka) or any of the East African countries of Kenya, Uganda and the United Republic of Tanzania formerly Tanganyika and Zanzibar with the intention of permanently settling in India:

Provided that a candidate belonging to category (b) or (c) above must be a person in whose favour a certificate of eligibility has been issued by the State Government.

Provided further that a candidate belonging to category (b) will also be required to obtain a certificate of eligibility granted by the Deputy Inspector-General of Police, Intelligence Branch, Uttar Pradesh:

Provided also that if a candidate belongs to category (c) above, no certificate of eligibility will be issued for a period of more than one year and the retention of such a candidate in service beyond a period of one year, shall be subject to his acquiring Indian citizenship.

Note - A candidate in whose case a certificate of eligibility is necessary but the same has neither been issued nor refused, may be admitted to an examination or interview and the may also be provisionally appointed subject to the necessary certificate being obtained by him or issued in his favour.

9.

Academic qualifications.

- A candidate for direct recruitment to the various posts in the service possess the following qualifications:

Post

Qualifications

Inspector Group III-A

B.Com. or B.Sc. (Agriculture) or Bachelors degree with Economics, Statistics or Mathematics.

Inspector Group III-B

Intermediate Examination of the Board of High School and intermediate Education or an examination declared by the Governor as equivalent thereto.

10.

Other things being equal.

- Preference will be given to a candidate (a) who has obtained training in co-operation from any of the recognised training colleges run by National Co-operative Department, (b) has served in the Territorial Army for a minimum period of two years, or (c) has obtained a "B" certificate of National Cadet Corps.

11.

Age.

- A candidate for direct recruitment must have attained the age of 18 years and must not have attained the age of more than 27 years on January 1 of the year in which recruitment is to be made, if the posts are advertised during the period January 1 to June 30 and on July 1 if the posts are advertised during the period July 1 to December 31:

Provided that-

(i)

the upper age limit in the case of candidates belonging to the Scheduled Castes, Scheduled Tribes and such other categories as may be notified by the Government from time to time shall be greater by such number of years as may be specified;

(ii)

the maximum upper-age limit in the case of candidates already in a Government service or in the service of U.P. Co-operative Union shall be greater by five years.

Note - Copies of the Government orders regarding relaxation of age in force at the commencement of these rules are given in Appendix 'C'.

12.

Character.

- The Character of a candidate for direct recruitment to a post in the service must be such as to render him suitable in all respects for employment in Government service. The appointing authority shall satisfy itself on this point.

Note - Persons dismissed by the Union Government or a State Government or by a local Authority or a Corporation or Body, owned or controlled by the Union Government or a State Government, shall be ineligible for appointment to any

post in the service. Persons convicted of an offence involving moral turpitude shall also be ineligible.

13.

Marital status.

- A male candidate who has more than one wife living or a female candidate who has married a man already having a wife living shall not be eligible for appointment to a post in the service:

Provided that the Governor may, if satisfied that there exist special grounds for doing so, exempt any person from the operation of this rule.

14.

Physical fitness.

- No candidate shall be appointed to a post in the service unless he be in good mental and bodily health and free from any physical defect likely to interfere with the efficient performance of his duties. Before a candidate is finally approved for appointment he shall be required to produce a medical certificate of fitness in accordance with the rules framed under Fundamental Rule 10 and contained in Chapter III of the Financial Handbook, Volume II, Parts II to IV:

Provided that a medical certificate of fitness shall not be required from a candidate recruited by promotion.

Part V ? Procedure for Recruitment

15.

Determination of vacancies.

- The appointing authority shall determine and notify to the Employment Exchange, in accordance with the rules or orders for the time being in force, the number of vacancies to be filled during the course of the year as also the number of vacancies to be reserved for the candidates belonging to Scheduled Castes, Scheduled Tribes and other categories under rule 7.

16.

Procedure for direct recruitment.

(1)

For the purpose of recruitment, there shall be constituted a Selection Committee comprising of-

(a)

Appointing authority or an officer not below the rank of Deputy Registrar nominated by him.

(b)

Deputy Registrar

(c)

Deputy Registrar.

(2)

The Selection committee shall scrutinise the applications and require the eligible candidates to appear in competitive examination.

Note - The syllabus and procedure for competitive examination is given in Appendix 'D'.

(3)

After the marks obtained in the written test have been tabulated, the Selection Committee shall, having regard to the need for securing due representation of the candidates belonging to Scheduled Castes, Scheduled Tribes and other categories in accordance with rule 7, call for interview such number of candidates as, on the result of the written examination, have come up to the standard fixed by the Committee in this respect. The marks awarded to each candidate in the interview shall be added to the marks obtained by him in the written test.

(4)

The Selection committee shall prepare a list of candidates in order of merit, as disclosed by the aggregate of marks obtained by them in the written test and interview. If two or more candidates obtain equal marks, the candidates obtaining higher marks in the written test shall be placed higher. The number of the names in the list shall be larger (but not larger by more than 25 per cent) than the number of the vacancies.

(5)

Candidates shall have to pay such fee for written test and viva voce as may be prescribed from time to time. No claim for refund of this fee shall be entertained.

17.

Procedure for recruitment of promotion from Group III-B to Group III-A.

(1)

Recruitment by promotion shall be made on the basis of seniority subject to the rejection of unfit through the Selection Committee constituted under rule 16.

(2)

The appointing authority shall prepare an eligibility list of the candidates, arranged in order of seniority, and place it before the Selection Committee along with their character rolls and such other record, pertaining to them as may be considered proper.

(3)

The Selection Committee shall consider the cases of candidates on the basis of records, referred to in sub-rule (2), and if it considers necessary, it may interview the candidates also.

(4)

The Selection Committee shall prepare a list of selected candidates arranged in order of seniority and forward the same to the appointing authority.

18.

Combined selection list.

- If appointment has to be made both by direct recruitment and by promotion a combined select list shall be prepared by taking the names of candidates alternately from the list prepared under rules 16 and 17, the first name being from the list prepared under rule 17.

Part VI ? Appointment, Probation, Confirmation and Seniority

19.

Appointment.

(1)

On the occurrence of substantive vacancies the appointing authority shall make appointments by taking candidates in the order in which they stand in the list prepared under rule 16,17 or 18, as the case may be.

(2)

The appointing authority may make appointments in temporary and officiating vacancies also from the lists, referred to in sub-rule (1). If no candidate borne on these list is available, he may make appointment in such vacancies from persons eligible for appointment under these rules.

20.

Probation.

(1)

A person on appointment to a post in the service in or against a substantive vacancy shall be placed on probation for a period of two years.

(2)

The appointing authority may, for reasons to be recorded, extend the period of probation in individual cases specifying the date up to which the extension is granted.

(3)

If it appears to the appointing authority at any time during or at the end of the period of probation or extended period of probation that a probationer has not made sufficient use of his opportunities or has otherwise failed to give satisfaction, he may be reverted to his substantive post, if any, and if he does not hold a lien on any post, his services may be dispensed with.

(4)

A probationer who is reverted or whose services are dispensed with under sub-rule (3) shall not be entitled to any compensation.

(5)

The appointing authority may allow continuous service, rendered in an officiating or temporary capacity in a post included in the cadre of the service or any other equivalent or higher post, to be taken into account for the purposes of computing the period of probation.

21.

Confirmation.

- A probationer shall be confirmed in his appointment at the end of the period of probation of the extended period of

probation, if-

(a)

he has successfully undergone the prescribed training;

(b)

his work and conduct is reported to be satisfactory;

(c)

his integrity is certified; and

(d)

the appointing authority is satisfied that he is otherwise fit for confirmation.

22.

Seniority.

- Seniority in any category of posts in the service shall be determined from the date of substantive appointment and if two or more persons are appointed on the same date from the order in which their names are arranged in the appointment order:

Provided that-

(1)

the inter se seniority of persons directly appointed to the service shall be the same as determined at the time of selection,

(2)

the inter se seniority of persons appointed to the service by promotion shall be the same as it was in the substantive post held by them at the time of promotion.

Note - A candidate recruited directly may lose his seniority if he fails to join without valid reason when a vacancy is offered to him. The decision of the appointing authority as to the validity of the reasons will be final.

23.

Training.

- Candidates selected through the combined competitive examination shall be required to undergo such training and pass such post-training examination as may be prescribed from time to time by the Registrar.

Part VII ? Pay, Etc.

24.

Scale of Pay.

(1)

The scales of pay admissible to persons appointed to the various categories of posts in the service, whether in a substantive or officiating capacity or as a temporary measure shall be such as may be determined by the Government from time to time.

(2)

The scales of pay at the time of commencement of these rules shall be as given in Appendix 'C'.

25.

Pay during probation.

(1)

Notwithstanding any provisions in the permanent Government service shall be allowed his first increment in the time scale when he has completed one year of satisfactory service, and has successfully undergone training where prescribed, and second increment after two years service when he has completed the probationary period and is also confirmed:

Provided that if the period of probation is extended on account of failure to give satisfaction such extension shall not count for increment unless the Appointing Authority directs otherwise.

(2)

The pay during probation of a person who was already holding a post under the Government shall be regulated by the relevant Fundamental Rules:

Provided that if the period of probation is extended on account of failure to give satisfaction such extension shall not count for increment unless the appointing authority directs otherwise.

(3)

The pay during probation of a person already in permanent Government service shall be regulated by the relevant rules, applicable to Government servants generally serving in connection with the affairs of the State.

26.

Criterion for crossing efficiency bar.

- No person shall be allowed to cross-

(1)

the first efficiency bar unless he is found to have worked steadily and to the best of his ability, his work and conduct is found to be satisfactory and unless his integrity is certified;

(2)

the second efficiency bar unless he is found to have worked steadily and to the best of his ability, has acquired adequate knowledge of the working of the department, his work and conduct is found to be satisfactory and unless his integrity is certified

Part VIII ? Other Provisions

27.

Canvassing.

- No recommendations either written or oral, other than those required under the rules, applicable to the post or service, will be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his candidature will disqualify him for appointment.

28.

Regulation of other matters.

- In regard to the matters not specifically covered by these rules or special orders persons appointed to the service shall be governed by the rules, regulations and orders applicable generally to Government servants serving in connection with the affairs of the State.

29.

Relaxation from the conditions of service.

- Where the State Government is satisfied that the operation of any rule regulating the conditions of service of persons appointed to service causes undue hardship in any particular case, it may notwithstanding anything contained in the rules applicable to the case, by order, dispense with or relax the requirements of that rule to such extent and subject to such conditions as it may consider necessary for dealing with the case in a just and equitable manner.

Appendix 'A'

[(See Rule 4 (2))

Existing strength of the service and of each category of post therein

Serial No.

Designation of post

No. of permanent post

No. of Temporary post

Total

Group III-A

1.

Assistant Co-operative Inspector

110

..

110

2.

Satistical Assistants

55

..

58

3.

Grading AssistantsVillage Level Workers (Farming)

6

..54

654

Group III-B

1.

Co-operative Farming Supervisor-cum-Accountants

105

..

105

2.

Government Supervisors

..

176

176

3.

Grading Supervisors

..

32

32

4.

Laboratory Assistant1

1

..

1

Note - The temporary posts shown above shall be deemed to be included in the respective cadre as and when they are declared permanent by the Government.

Related AI tags, queries and research notes

Translation